



File No.: EXP202307047

RESOLUTION OF RIGHTS PROCEDURE

The procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD) have been carried out, and the following FACTS have been established:

FIRST: On March 6, 2023, Ms. A.A.A. (hereinafter, the complainant) exercised the right of access before the CITY COUNCIL OF SANTA CRUZ DE TENERIFE (hereinafter, the respondent) without her request receiving the legally established response.

Along with the complaint, she submitted the application filed with the registry to exercise the right.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations, without any response being recorded.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on July 12, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, so that within ten working days, they could present any arguments they deemed appropriate, indicating, in summary, that the files of the agency contain data of the complainant in various files processed by the Social Care Service.

It also indicates that data has been transferred at the request of the complainant by providing her with a referral sheet for food collection on several occasions, and that different files have been opened in the special commission for suggestions and complaints of the City Council.

"(...) Regarding the processing of your personal data, we are pleased to communicate the information on data protection:

RESPONSIBLE: City Council of Santa Cruz de Tenerife

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PURPOSE: To manage a file or a request as an interested party or representative.

LEGAL BASIS: GDPR, art. 6.1 e) Competence attributed by a norm with the rank of Law, among others: Law 7/1985, Bases of the Local Regime. Law 7/2015, of the municipalities of the Canary Islands. Law 39/2015, on the Common Administrative Procedure of Public Administrations (...).

RECIPIENTS: Data will not be transferred to third parties, except by legal obligation.

RIGHTS: You may exercise the rights of access, rectification, deletion, and opposition, limitation of processing, data portability as explained in the additional information, and you will not be subject to automated individualized decisions."

FOURTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within ten working days, she may formulate any arguments she considers appropriate, indicating, in summary, that she received a response in July 2023 indicating, basically, the same as was alleged in this procedure.

The complainant states that she did not give consent for her data to be transferred to NGOs, and that the data provided to them is excessive and unnecessary.

"Regarding the 'Social File, which contains the data of the users of this Agency,' this file is essentially my complete file, which I have requested and has NOT been provided to me, nor to the AEPD.

(...) I must say that, in most cases, when this agency claims 'that it has responded,' the reality is that it is a response that either does not arrive, or arrives very late and only after demanding and/or reporting, and, furthermore, they are empty responses, which only summarize what has happened and refer to the regulations or conditions, but never argue, document, or justify any of their actions, nor the reason for the denial.

(...) What manipulation of my personal data occurred to deny me assistance (after putting me through hell for months) claiming that I did not meet the requirements (which have always been the same)?"

FIFTH: After granting the respondent a hearing, they reaffirm their previous allegations, providing copies of the files processed by the complainant.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each

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3/12

The control authority and according to the provisions established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions established in Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the control authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, to respond to this Agency within one month, and to prove that they had provided the complainant with the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on July 12, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission for processing determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in

accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted.”

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4/12

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of remedying any infringement of the GDPR, including the power to “order the controller or processor to address requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights include access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must state its reasons if it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with Article 15 of the GDPR and Article 13 of the LOPDGDD, “the data subject has the right to obtain from the controller confirmation as to whether or not personal data concerning them is being processed and, if that is the case, the right of access to the personal data.”

Regarding the right of access to personal data, according to Article 13 of the LOPDGDD, when the exercise of the right relates to a large amount of data, the controller may request the affected party to specify the “data or processing activities to which the request refers.” The right will be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for it.

On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about

transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

V

Conclusion

In the present case, from the examination of the documentation provided by the parties, it appears that the complaining party not only requested access to their personal data but also to various aspects of the files managed by the complained party.

Article 12.5 of the LOPDGDD states that “5. When the applicable laws to certain processing establish a special regime affecting the exercise of the rights provided in Chapter III of Regulation (EU) 2016/679, the provisions of those laws shall apply.”

The Guidelines 1/2022, in their version of March 28, 2023, from the European Data Protection Board, state that

“14. Although the objective of the right of access is broad, the CJEU also illustrated the limits of the scope of competence of data protection legislation and the right of access. For example, the CJEU considered that the objective of the right of access guaranteed by EU data protection legislation must be distinguished from the right of access to public documents established by EU and national legislation, with the aim of ‘the greatest possible transparency of the decision-making process of public authorities and promoting good administrative practices,’ an objective not pursued by data protection legislation. The CJEU concluded that the right of access to personal data applies regardless of whether a different type of access right with a different objective is applied, as in the...”

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6/12

context of an examination procedure.” (The underlining is by the Spanish Agency for Data Protection)

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Regarding the right of access regulated in data protection legislation, it has been established that the complainant requested access to their personal data from the respondent, without receiving the legally established response, and that during the procedure they were provided with a list of some of the files processed by the agency, as well as the responsible party, the purpose, the legitimacy of the processing of those data, and, regarding the recipients, that “No data will be transferred to third parties, except for legal obligation.” However, they have not provided the specific and concrete data they have on the complainant.

The Guidelines 1/2022, previously mentioned, state that

“3.

Under the GDPR, the right of access consists of three components, namely, the confirmation of whether or not personal data is being processed, access to the same, and information about the processing itself. The data subject may also obtain a copy of the personal data processed, while this possibility is not an additional right of the data subject, but rather a means of providing access to the data. Therefore, the right of access can be understood both as the possibility for the data subject to ask the data controller whether personal data concerning them is being processed, and as the possibility to access and verify this data. The data controller shall provide the data subject, based on their request, with the information included within the scope of Article 15, paragraphs 1 and 2, of the GDPR.

(...)

(...)

16.1.1.

Definition of the content of the right of access

17.

Article 15, paragraphs 1 and 2, contains the following three aspects: first, the confirmation of whether

the personal data of the requesting person is being processed; second, access to that data; and third, information about the processing. These can be considered as three different components that together constitute the right of access.

17.1.1.1. Confirmation of whether or not personal data is being processed

18.

When making a request for access to personal data, the first thing that data subjects must know is whether the data controller processes the data concerning them. Consequently, this information constitutes the first component of the right of access under Article 15, paragraph 1. When the data controller does not process personal data related to the data subject requesting access, the information provided will be limited to confirming that no personal data related to the data subject is being processed. When the data controller processes data related to the requesting person, the data controller must confirm this fact to that person. This confirmation may be communicated separately, or it may be included as part of the information about the personal data being processed (see below).

2.2.1.2 Access to the personal data being processed

19.

Access to personal data is the second component of the right of access under Article 15, paragraph 1, and constitutes the core of this right. It refers to the notion of personal data as defined in Article 4, paragraph 1, of the GDPR. Apart from basic personal data, such as name and address, an unlimited variety of data may be included in this definition, as long as they fall within the material scope of the GDPR, especially regarding how they are processed (Article 2 of the GDPR). Access to personal data means access to the actual personal data, not just a general description of the data or a mere reference to the categories of personal data processed by the data controller. If no limits or restrictions apply, data subjects have the right to access all data processed concerning them, or parts of the data, depending on the scope of the request (see sec. 2.3.1). The obligation to provide access to the data does not depend on the type or source of such data. It applies in its entirety even in cases where the requesting person initially provided the data to the data controller, as its purpose is to inform the data subject about the actual processing of such data by the data controller. The scope of personal data under Article 15 is explained in detail in sec. 4.1 and 4.2.

(...)

2.3

General principles of the right of access

34.

When data subjects submit a request for access to their data, in principle, the information referred to in Article 15 of the GDPR must always be provided in its entirety. Consequently, when the data controller processes data related to the data subject, the data controller shall provide all the information referred to in Article 15, paragraph 1, and, where applicable, the information referred to in Article 15, paragraph 2. The data controller must take appropriate measures to ensure that the information is complete, correct, and up to date, as close as possible to the state of data processing at the time of receiving the request. When two or more data controllers process data jointly, the provision of the joint data controllers

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8/12

regarding their respective responsibilities in relation to the exercise of the rights of the data subject, especially concerning the response to access requests, does not affect the rights of the data subjects against the data controller to whom they direct their request.

2.3.1

Completeness of the information

35.

Data subjects have the right to obtain, with the exceptions mentioned below, the complete disclosure

of all data relating to them (for more details on the scope, see section 4.2). Unless the data subject expressly requests otherwise, the request to exercise the right of access shall be understood in general terms, encompassing all personal data relating to the data subject. Limiting access to part of the information may be considered in the following cases:

a)

The data subject has explicitly limited the request to a subset. To avoid providing incomplete information, the data controller may only consider this limitation of the data subject's request if they can be sure that this interpretation corresponds to the will of the data subject (for more details, see section 3.1.1, para. 51). In principle, the data subject will not have to repeat the request for the transmission of all data that the data subject has the right to obtain.

b)

(...)

42.1.1.

Analysis of the content of the request

43.

This issue can be evaluated more specifically by asking the following questions.

a) Does the request refer to personal data?

44.

Under the GDPR, the scope of the request will only cover personal data. Therefore, any request for information on other matters, including general information about the data controller, their business models, or their processing activities unrelated to personal data, will not be considered a request made in accordance with Article 15 of the GDPR. Furthermore, a request for information about anonymous data or data that does not concern the requester or the person on whose behalf the authorized person made the request will not fall within the scope of the right of access. This question will be analyzed in more detail in section 4.

45.

Unlike anonymous data (which is not personal data), pseudonymous data, which could be attributed to a natural person through the use of additional information, is personal data. Therefore, pseudonymous data that can be linked to a data subject, for example, when the data subject provides the respective identifier that allows their identification, or when the data controller can connect the data to the requester by their own means, must be considered within the scope of the request.

(...)

e) Do the data subjects wish to access all or part of the information processed about them?

51.

Furthermore, the data controller must assess whether the requests made by the requesters refer to all or part of the information processed about them. Any limitation of the scope of a request to a specific provision of Article 15 of the GDPR, made by the data subjects, must be clear and unequivocal. For example, if the data subjects literally require "information about the data processed concerning them," the data controller must assume that the data subjects intend to fully exercise their right under Article 15, paragraphs 1 to 2, of the GDPR. Such a request should not be interpreted as meaning that the data subjects wish to receive only the categories of personal data being processed and waive their right to receive the information listed in Article 15, paragraph 1, letters a) to h). This would be different, for example, when the data subjects wish, regarding the specified data, to have access to the source or origin of the personal data or the specified retention period. In such a case, the data controller may limit their response to the specific information requested.

It cannot be accepted that the response that corresponds to be given may manifest itself in the context of a mere administrative procedure, such as the submission of allegations in connection with this procedure, initiated precisely by not properly addressing the request in question. The aforementioned rules do not allow the request to be overlooked as if it had not been made, leaving it without the response that the controllers must necessarily issue, even in the event that there are no data in the files or even in those cases where it does not meet the stipulated requirements, in which case the recipient of such a request is also obliged to require the rectification of the observed deficiencies or,

where appropriate, deny the request with justification indicating the reasons why the right in question should not be considered. Therefore, the request made obliges the controller to provide an express response in any case, using any means that justifies the receipt of the response.

Given that a copy of the necessary communication that must be directed to the complaining party informing them about the decision that has been made is not attached.

10/12

For the purpose of the request for the exercise of rights, it is appropriate to estimate the claim that originated this procedure.

Consequently, it is appropriate to estimate the claim presented regarding the right of access to personal data.

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Regarding the right of access to the files managed by the responding party, the aforementioned Guidelines 1/2022 indicate that

“14.

Although the objective of the right of access is broad, the CJEU also illustrated the limits of the scope of competence of data protection legislation and the right of access. For example, the CJEU considered that the objective of the right of access guaranteed by EU data protection legislation must be distinguished from the right of access to public documents established by EU and national legislation, with the aim of ‘the greatest possible transparency of the decision-making process of public authorities and to promote good administrative practices,’ an objective not pursued by data protection legislation. The CJEU concluded that the right of access to personal data applies regardless of whether a different type of access right with a different objective is applied, such as in the context of a review procedure.” (The underlining is from the Spanish Agency for Data Protection)

Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) establishes in its Article 53, Rights of the interested party in the administrative procedure:

“1. In addition to the other rights provided for in this Law, interested parties in an administrative procedure have the following rights:

a) To know, at any time, the status of the processing of the procedures in which they have the status of interested parties; the meaning of the administrative silence that corresponds, in case the Administration does not issue or notify an express resolution within the deadline; the competent body for its instruction, where applicable, and resolution; and the procedural acts issued. Likewise, they will also have the right to access and obtain copies of the documents contained in the aforementioned procedures.

Those who relate to Public Administrations through electronic means will have the right to consult the information referred to in the previous paragraph at the General Electronic Access Point of the Administration, which will function as an access portal. The obligation of the Administration to provide copies of the documents contained in the procedures will be considered fulfilled by making them available at the General Electronic Access Point of the competent Administration or at the corresponding electronic offices.

b) To identify the authorities and personnel serving the Public Administrations under whose responsibility the procedures are processed.

c) (...)

f) To obtain information and guidance regarding the legal or technical requirements that the current provisions impose on the projects, actions, or requests that they propose to carry out.

g) (...)”

In the present case, the claim of the complaining party falls outside the competence of this Agency, so they could direct their request, if they deem it appropriate, to the corresponding instances to request access to the files.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ESTIMATE the claim made by Ms. A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge the TOWN HALL OF SANTA CRUZ DE TENERIFE with NIF P3803800F, to send to the complaining party, within ten working days following the notification of this resolution, a certification addressing the requested right or a reasoned denial indicating the reasons why the request cannot be granted, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Ms. A.A.A. and to the TOWN HALL OF SANTA CRUZ DE TENERIFE.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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12/12

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions established in Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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